

2014 SCC OnLine All 229

(BEFORE AMRESHWAR PRATAP SAHI AND ANIL KUMAR AGARWAL, JJ.)

Smt. Madhu Rani Agrawal Petitioner

v.

State of U.P. & 5 Others Respondents

Counsel for Petitioner:- Ranjit Saxena, Deepak Saxena

Counsel for Respondent:- C.S.C., Pranjal Mehrotra

Writ - C No. - 526 of 2014

Decided on January 7, 2014

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Anil Kumar Agarwal, J.

Heard Sri. Ranjeet Saxena, learned counsel for the petitioner and Sri. Pranjal Mehrotra for the respondent-Power Corporation.

This petition has been filed praying for quashing of the letter dated 21.05.2013 and the subsequent communication dated 25.11.2013, whereby the petitioner contends that she is being compelled to take the services of the department for supply of equipments with regard to installation of a fresh electricity connection.

Sri. Ranjeet Saxena submits that the petitioner herself will provide equipments like the transformer etc. and poles in order to ensure qualitatively better equipments for such utilization, but the respondent Corporation is insisting on receiving supplies from the Department itself, which action is arbitrary.

Sri. Saxena submits that a better quality of transformer and electricity pole shall be installed by the petitioner, with regard to which the Electricity Department can have no possible objection nor there is any law to compel the petitioner to receive the installation equipments only from the power corporation.

We have perused the regulations and the order dated 20.06.2013, which has been produced by the learned counsel for the petitioner during the course of the arguments. The said order of the respondent Corporation clearly indicates that there are regulations and orders that wherever installation is to be made up to the extent of 500 meters from the electricity pole connection, the entire installation work shall be done and conducted by the Electricity Department itself and if the same

extends beyond the same, then certain charges shall be levied or the consumer can be allowed to get it installed at his or her expenses.

In the instant case, it is not in dispute by the petitioner that the installation is to be made within 500 meters. Apart from this, the regulations that are applicable do not create any such bar but at the same time the Cost Data Book, copy whereof is annexed as Annexure-16 to the writ petition clearly recites in Clause 4 (ii) as follows:-

“Clause 4.6 of the Electricity Supply Code 2005 provides that, (b) the estimate (for release of new connection) shall include security deposit, charges of laying Line, distribution mains (if required) and material, and system loading charges etc. as determined by the licensee with the approval of the Commission once in two years. (d) The above estimate shall be based on Rs/kW (or Rs/kVA) of the sanctioned/contracted load, or on Rs. per installation for specific bands of contractual load applied or sanctioned load at each voltage level up to 33 kV voltage on which supply is to be given. Beyond 33 kV voltage level, the charges for laying shall be based on actual estimates of the licensees.”

On perusal thereof, it leaves no room for doubt that while accepting the estimate for the electricity connection, the same shall include such charges of laying line, distribution mains etc. This clearly includes the installation of poles, transformer etc. Consequently, the Electricity Department is under an obligation to carry out the said activity for installation of electricity connection, for which the consumer is obliged to make the payments. In the circumstances, the argument of Sri. Ranjeet Saxena that the petitioner can get the equipments installed herself does not arise.

There is no merit in this petition, dismissed.

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